

Source Available Software License Agreement

1 LICENSE

- 1.1 This License Agreement (this “**Agreement**”) sets forth the terms and conditions on which Aduna AB, a company incorporated under the laws of Sweden, with its registered office at Vasagatan 28, 111 20 Stockholm, Sweden, registered number 559428-2765 (“**Aduna**” or “**Licensor**”) makes the software developer kit, developed for the purpose of permitting access to Number Verification API version 2 functionality (the “**Service SDK**”) available to the individual or entity agreeing to this Agreement (“**You**”). By accessing or using the Service SDK in any manner, You agree to be bound by all the terms and conditions of this Agreement.

2 SCOPE OF LICENSE

- 2.1 Subject to the terms of this Agreement, Aduna hereby grants You, for the duration of the Term, a non-exclusive, non-transferable, non-sublicensable, royalty-free and fully-paid up license to use the Service SDK for the sole purpose to enable Number Verification and its lawful use.
- 2.2 You may not use the Service SDK to provide similar APIs to any third party, including any developer, aggregator or channel partner, or to develop another software developer kit (“SDK”). You further agree that You will only use the SDK (a) as permitted by this Agreement and (b) in accordance with any applicable law, regulation or generally accepted practices or guidelines in the relevant jurisdiction. You may not (i) copy, modify, enhance, create derivative works of, distribute or otherwise provide the Service SDK; (ii) reverse engineer, disassemble, or decompile the Service SDK or any component or code included in the Service SDK; (iii) sell, resell, redistribute, sublicense, transfer any portion of or otherwise provide the Service SDK; or (iv) not remove, obscure, or alter any proprietary rights notices (including copyright and trademark notices) that may be affixed to or contained within the SDK. Further, You shall not export, re-export, transfer, or otherwise make the Service SDK available, directly or indirectly, to any country, entity, or individual prohibited under applicable export control or sanctions laws.
- 2.3 Aduna may periodically update the Service SDK at its sole discretion. You acknowledge and agree that future versions of the Service SDK may be incompatible with number verification API services developed on previous versions.

3 TERM, TERMINATION

- 3.1 Your license to the Service SDK will automatically terminate if You breach any term, condition, or restriction of this Agreement. Upon termination, You will immediately cease use of the Service SDK. Aduna may otherwise terminate this License at its sole discretion.
- 3.2 Upon termination of this Agreement, You will immediately cease use of the Service SDK.

4 OWNERSHIP, NO OTHER RIGHTS

- 4.1 The Service SDK shall at all times remain the sole and exclusive property of Aduna.
- 4.2 Except for the licenses expressly granted to You in this Agreement, Licensor grants You no other licenses or rights in the Service SDK or otherwise.

5 IMPLEMENTATION, MAINTENANCE AND SUPPORT

- 5.1 Aduna may, at its sole discretion, provide updates, bug fixes, or security patches for the Service SDK. Aduna does not guarantee the availability or frequency of such updates, or compatibility of such updates with Your existing implementation.
- 5.2 Aduna shall have no obligation to (i) develop new features or enhancements for the Service SDK; (ii) ensure backward compatibility of updates; or (iii) provide on-site support or integration services.
- 5.3 You acknowledge and agree that the Service SDK is provided “as is” and that Aduna’s maintenance and support obligations are limited as described above.

6 COMPLIANCE WITH LAW

- 6.1 Each Party shall comply with all applicable laws, regulations, codes, and ordinances in performing services under this Agreement, including (without limitation):
 - 6.1.1 intellectual property rights, privacy, data protection, and information security; and
 - 6.1.2 anti-bribery and anti-corruption laws, including the U.S. Foreign Corrupt Practices Act (FCPA), the UK Bribery Act, and other applicable anti-corruption legislation; and
 - 6.1.3 all applicable export control laws and regulations and all applicable economic, trade and financial sanctions laws, regulations, embargoes or restrictive measures administered in the European Union, United States of America and any other jurisdictions which are applicable.

7 WARRANTIES, DISCLAIMERS

- 7.1 ADUNA MAKES NO WARRANTIES, EXPRESS OR IMPLIED, INCLUDING, WITHOUT LIMITATION, ANY IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE OR NON-INFRINGEMENT, IN RELATION TO THE SERVICE; AND THE SERVICE IS PROVIDED “AS IS” WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED. YOUR USE OF THE SERVICE SDK AND ANY MATERIAL DOWNLOADED OR OTHERWISE OBTAINED THROUGH THE USE OF THE SERVICE SDK IS AT YOUR DISCRETION AND RISK AND YOU ARE SOLELY RESPONSIBLE FOR ANY DAMAGE TO YOUR COMPUTER SYSTEMS AND NETWORKS OR LOSS OF DATA THAT RESULTS FROM SUCH USE.

8 LIMITATION OF LIABILITY

- 8.1 Aduna is not liable to You for any indirect, incidental, special or consequential damages; or any loss of profits, revenue or expected savings; in each case, arising out of or in connection with the Agreement or the provision of the Service SDK, i.e., including whether arising in negligence, tort, statute, equity, contract, or any other cause of action or legal theory .

9 GOVERNING LAW, JURISDICTION

This Agreement shall be governed by and construed in accordance with the laws of Sweden. Any dispute, controversy, or claim arising out of or in connection with this Agreement shall be finally resolved by arbitration under the Rules of the International Chamber of Commerce (ICC). The arbitration shall be conducted by a panel of three arbitrators, with the seat of arbitration in Stockholm, Sweden, and the language of the proceedings being English.

10 MISCELLANEOUS

This Agreement may not be assigned or encumbered, in whole or in part, by You without the prior written consent of Aduna. Any assignment not in compliance with section shall be void.